

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA

In the matter of an appeal in terms of
Section 331 (1) of the Code of Criminal
Procedure Act No. 15 of 1979.

Democratic Socialist Republic of Sri
Lanka.

Complainant

Court of Appeal Case No:

CA/HCC/0137/25

High Court of Kandy Case No:

HC 242/2019

Vs

Gurudeniye Wedagedara Nandasena *alias*
Donald

Accused

AND NOW BETWEEN

Gurudeniye Wedagedara Nandasena *alias*
Donald

Accused-Appellant

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant – Respondent

Before : **P. Kumararatnam, J.**
Pradeep Hettiarachchi, J.

Counsel : Saliya Pieris, PC, with Pasindu Thilakarathne and Hiruni
Chandrasekara for the Accused-Appellant.

: Haleema Faiz, SC, for the State.

Argued on : 21.07.2026

Decided on : 17.09.2026

Pradeep Hettiarachchi, J

Judgment

1. This appeal arises from the judgment and sentence dated 24.01.2025 delivered by the learned High Court Judge of Kandy. The Accused-Appellant (hereinafter referred to as "the Appellant") was indicted before the High Court of Kandy on a charge of committing grave sexual abuse against an eight-year-old boy, an offence punishable under Section 365B(2)(b) of the Penal Code, as amended by Act No. 22 of 1995, Act No. 29 of 1998, and Act No. 16 of 2006.
2. At the trial before the High Court, the prosecution called four witnesses, while the Appellant testified on his own behalf and called three witnesses for the defence. Upon the conclusion of the trial, the learned Trial Judge found the Appellant guilty of the charge and convicted him accordingly. The Appellant was consequently sentenced to ten years' rigorous imprisonment and ordered to pay a fine of Rs. 10,000.00, with a default sentence of twelve months' imprisonment. In addition, the learned Trial Judge ordered the Appellant to pay Rs. 100,000.00 as compensation to the victim, with a default sentence of twelve months' imprisonment.
3. Being aggrieved by the said conviction and sentence, the Appellant has preferred the instant appeal. The Appellant relies on the following principal grounds of appeal:

- a. The learned Trial Judge failed to properly evaluate the evidence adduced by the defence;
 - b. The learned Trial Judge failed to comply with the requirements of Section 283 of the Code of Criminal Procedure Act; and
 - c. The prosecution evidence is inherently improbable, and the learned Trial Judge failed to consider the weaknesses in the prosecution case.
4. According to the testimony of the victim, the alleged incident occurred at a secluded location along a gravel road. At the relevant time, the victim travelled to and from school by bus. In order to board the bus, he had to walk a considerable distance from his home along the gravel road.
5. On the day of the alleged incident, after returning from school by bus, the victim alighted at his usual bus stop and proceeded to walk home along the same gravel road. The Appellant, who was a resident of a neighboring village, had travelled on the same bus and was seated with the victim. According to the victim, the appellant followed him after they got off the bus and, at a secluded spot along the road, suddenly grabbed him, pulled down his trousers, and bit his penis. The alleged incident took place in an isolated area where no other persons were present.
6. According to the evidence of the victim, after the alleged incident, he returned home and informed his mother of what had occurred. By that time, a cousin of the victim, Vishwajith, had already informed the victim's mother about the incident. Thereafter, a complaint was lodged with the police, and the victim was referred for a medical examination.
7. I shall first address the Appellant's contention that the prosecution case is inherently improbable and that the learned Trial Judge failed to give due consideration to the deficiencies and weaknesses in the prosecution evidence.
8. At the time of the alleged incident, the victim was eight years old, and his testimony was recorded before the Court eight years thereafter. In such circumstances, some degree of inconsistency, omission, or discrepancy in his evidence is inevitable. Nevertheless, unless those infirmities are material, affect the core of the prosecution

case, or indicate that the testimony is a product of fabrication, they cannot, by themselves, render the evidence of PW1 unreliable or unworthy of credit. Therefore, the evidence led by the prosecution in the present case has to be carefully analyzed and evaluated bearing in mind the above considerations.

9. The Appellant further contended that the version of PW3 is inherently improbable. According to PW3, when he witnessed the incident, he shouted “ඒයි,” upon which the Appellant released the victim and left the scene. However, according to the testimony of the victim, he did not see PW3 at the scene of the incident. Nevertheless, the victim admitted that it was PW3 who first informed his mother about the incident.
10. Therefore, there appears to be some inconsistency between the testimonies of PW1 and PW3 as to who first informed PW1’s mother of the incident. It was contended on behalf of the Appellant that it was highly improbable that PW3 would have left the scene without speaking to the victim if he had in fact witnessed the incident. It is to be noted that the victim was eight years old at the time of the incident, while PW3 was only twelve years old.
11. Hence, I find it difficult to discern any inherent improbability in PW3's conduct in leaving the scene without speaking to the victim, particularly having regard to his tender age. Needless to say, a child of PW3's age could not reasonably be expected to confront an elderly man, especially when the latter was allegedly engaged in the commission of an offence of the nature complained of, which is not one ordinarily encountered. Accordingly, PW3's reaction and subsequent conduct after witnessing the alleged incident do not disclose any inherent improbability that would render the prosecution evidence untrustworthy or lacking in credibility, as contended by the defence.
12. According to PW3, upon witnessing the incident, he shouted and immediately went to the victim's house, which was situated next to his own. By the time he arrived there, the victim was already relating the incident to his mother.
13. According to the testimony of the victim, he did not see PW3 at the time the alleged offence was being committed by the Appellant. In my view, the mere fact that the victim did not notice PW3 does not diminish the credibility of PW3's evidence. Given the

unexpected and traumatic nature of the incident, the victim may either have forgotten that PW3 had witnessed the incident or may simply have failed to notice who was present in the vicinity at the time.

14. It is also pertinent to note that the victim was only eight years old at the time of the alleged incident, while PW3 was fourteen years old. Both witnesses testified before the trial court approximately ten years after the incident. Accordingly, in view of their tender ages at the time of the incident and the significant passage of time before they gave evidence, it is only natural that certain minor inconsistencies would appear in their testimonies. Such inconsistencies do not, in my view, undermine their overall credibility.
15. The evidence of a child witness must be assessed as a whole, taking into account the entirety of the evidence adduced at the trial. At the conclusion of the case, the court must determine whether the child's evidence, having been tested through cross-examination, is trustworthy. This assessment depends upon whether the child was able to narrate the events coherently, communicate effectively, understand the questions posed, and provide rational and intelligible answers.
16. If the child's evidence has not undergone any material or substantial change and the essence of the allegations remains intact, the court may safely accept such evidence as satisfactory in all material respects after evaluating it alongside the evidence of the accused. The expression "satisfactory in all material respects" does not require that every aspect of the testimony be free from discrepancies or inconsistencies. Rather, the court must consider the evidence in its entirety, bearing in mind that minor discrepancies are not uncommon, particularly in the testimony of a child witness, and determine whether the evidence, viewed as a whole, is sufficiently reliable to establish the guilt of the accused.
17. In *R v. Norbury [1978] Crim LR 435*, the Privy Council admitted the testimony of a six-year-old rape victim, stating that if the child understands the questions and provides rational answers, corroboration is not necessary.

18. In ***Ranjeet Kumar Ram v. State of Bihar [2015] SCC Online SC 500***, the court held that:

“Evidence of the child witness and its credibility would depend upon the circumstances of each case. Only precaution which the court has to bear in mind while assessing the evidence of a child witness is that the witness must be a reliable one”.

19. In ***Satish Kumar Gupta v. State of Haryana AIR 2017 SUPREME COURT 1072***, the Supreme Court of India upheld a conviction based solely on the testimony of a 12-year-old who witnessed his father's murder. The Court found his testimony to be reliable, admissible, and free from external influence.

20. Therefore, in my view, the aforementioned inconsistency between the testimonies of the victim and PW3 is not of such a material nature as to go to the root of the prosecution's case or justify the rejection of their evidence.

21. It was also contended on behalf of the Appellant that there existed a dispute between the victim's family and the Appellant concerning the use of a nickname for the victim's maternal grandfather and that, as a result, the present complaint was lodged to falsely implicate the Appellant. In support of this contention, Defence Witness No. 2 testified that, when the victim's maternal grandfather was referred to as "Ali Banda", the victim's mother became angry and scolded them using abusive language.

22. I find it difficult to accept this contention as providing a plausible motive for falsely implicating the Appellant for the following reasons. The Appellant himself admitted that the victim's maternal grandfather was commonly known as "Ali Banda". According to his evidence, on one occasion, some outsiders had asked the Appellant's children to show them Ali Banda's house while they were playing. This admission demonstrates that the victim's maternal grandfather was referred to as "Ali Banda" not only by the Appellant or his family but also by other persons in the village.

23. In these circumstances, the mere use of that name could not reasonably have been the cause of such hostility between the victim's mother and the Appellant as would motivate her to fabricate a serious allegation against him. Accordingly, I am not persuaded that the above incident constitutes a cogent or credible reason for the victim or his family to make a false complaint against the Appellant.
24. The Judicial Medical Officer who examined the victim also gave evidence regarding the injuries he observed on the child. According to his testimony, the child was produced before him for examination on the day following the alleged incident. Upon referring to the Medico-Legal Report marked **P5**, he stated that the injuries found on the child were consistent with the history narrated by the child.
25. It was also contended on behalf of the Appellant that the learned Trial Judge had failed to properly analyze and evaluate the defence evidence and that, consequently, the impugned judgment does not comply with the requirements of Section 283 of the Code of Criminal Procedure Act.
26. Upon a perusal of the impugned judgment, it is apparent that the learned Trial Judge's analysis and evaluation of the evidence do not represent the most appropriate compliance with the requirements of Section 283 of the Code of Criminal Procedure Act. Nevertheless, in my view, that shortcoming does not warrant the setting aside of the judgment, as no other conclusion could reasonably have been reached in light of the cogent and compelling evidence adduced by the prosecution.
27. Her analysis of the defence evidence could also have been more comprehensive than it was. However, the impugned judgment cannot be set aside solely on account of that deficiency, as a more detailed analysis would not reasonably have led to a conclusion different from that reached by the learned trial Judge, having regard to the strength and cumulative effect of the prosecution evidence.
28. Furthermore, it is well established that an appellate court will be slow to interfere with the findings of fact made by a trial Judge unless such findings are shown to be perverse, unsupported by the evidence, or otherwise contrary to established legal principles, resulting in prejudice to the Appellant. This approach is founded on the recognition that

the trial Judge enjoys the unique advantage of seeing and hearing the witnesses and observing their demeanor while they testify.

29. The well-established principles governing the limited circumstances in which an appellate court may interfere with the findings of a trial court are set out in the following authorities.

30. In *Alwis vs Piyasena Fernando (1993) 1 Sri. L R 119*, it was held that:

"It is well established that findings of primary facts by a trial Judge who hears and sees witnesses are not to be lightly disturbed on appeal."

31. Similar views were articulated in *Dharmasiri Vs. Republic of Sri Lanka [2010] 2 Sri. L.R.241*, where it was held that:

"Credibility of a witness is mainly a matter for the trial Judge; the Court of Appeal will not lightly disturb the findings of a trial Judge with regard to the credibility of a witness unless such findings of the trial Judge are manifestly wrong."

32. In the Court of Appeal decision *of Kumar de. Silva and 2 others V. Attorney General [2010] 2 Sri LR 169*, Sarath de. Abrew J had held that;

"Credibility is a question of fact, not of law. The acceptance or rejection of evidence of witnesses is therefore a question of fact for the Trial Judge"

33. In *Ariyadasa V. Attorney General [2012] 1 Sri LR 84*, the Court of Appeal held that;

"Court of Appeal will not lightly disturb a finding of a Judge with regard to the acceptance or rejection of a testimony of a witness, unless it is manifestly wrong, when the Trial Judge has taken such a decision after observing the demeanour and deportment of a witness....."

34. In *S v Francis 1991 (1) SACR 198 (A) at 198J - 199A*, the Supreme Court of Appeal of South Africa held:

"The powers of a court of appeal to interfere with the findings of a trial court are limited. In the absence of any misdirection, the trial

courts conclusion, including its acceptance of a witness's evidence, is presumed to be correct. In order to succeed on appeal, the Appellant must therefore convince the Court of appeal on adequate grounds that the trial court was wrong in accepting the witness's evidence - a reasonable doubt will not suffice to justify interference with its findings. Bearing in mind the advantage which a trial Court has of seeing, hearing and appraising a witness, it is only in exceptional circumstances that the Court of appeal will be entitled to interfere with a trial court's evaluation of oral testimony.”

35. For the foregoing reasons, I find no basis to interfere with the findings of the learned Trial Judge. Accordingly, I affirm the conviction of the Appellant by the learned High Court Judge of Kandy on 24.01.2025.
36. However, having regard to the fact that the Appellant did not use any violence against the victim, did not threaten the victim to prevent disclosure of the incident, and has no previous convictions or pending criminal cases, I am of the view that a modest reduction of the sentence would not occasion any prejudice.
37. Accordingly, I vary the sentence of ten years' rigorous imprisonment imposed by the learned Trial Judge and substitute therefor a sentence of seven years' rigorous imprisonment. The substituted sentence shall take effect from the date of conviction, namely, 24.01.2025. The orders imposing the fine and directing the payment of compensation shall remain unchanged.
38. Subject to the above variation of the sentence, the appeal stands dismissed.

Judge of the Court of Appeal

P. Kumararatnam, J.

I agree,

Judge of the Court of Appeal